

Court No. - 21

Case :- WRIT - C No. - 1759 of 2023

Petitioner :- Satyawan Singh

Respondent :- State Of U P And Another

Counsel for Petitioner :- Pradhumn Kumar Pandey, Anoop Kumar Mishra

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The petitioner has challenged the notice of provisional assessment dated 24.12.2021 and demand notice dated 29.09.2022 issued by respondent no.2 in a case of theft of electricity.

The contention of learned counsel for the petitioner is that the respondents are threatening to recover the amount without there being any final assessment order in existence.

Ms Rishu Mishra, learned counsel appearing on behalf of respondent no.2 states that the respondents are ready to decide the objection, in case, it is filed by the petitioner against the provisional assessment order and finalize the proceeding as per the procedure prescribed under the Electricity Supply Code, 2005 (hereinafter referred to as the 'Code').

Accordingly, the petition is **disposed of** by providing that the petitioner shall file objections within fifteen days from today in response to the provisional assessment notice dated 24.12.2021, in which event, the respondents will proceed further in the matter in accordance with the procedure prescribed under the Code.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.1.2023

S.Chaurasia